

1/5

File No.: EXP202303494

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for the Protection of Data and based on the following

FACTS

FIRST: On February 14, 2023, two complaints were filed with entry registration numbers ***REGISTRO.1 and ***REGISTRO.2 with the Spanish Agency for the Protection of Data, the first against A.A.A. and the second against B.B.B. with NIF ***NIF.1 (hereinafter, the complained parties).

The basis for both complaints is as follows:

The complainant states that in the property located at ***DIRECCIÓN.1 in the town of Vega de Valcarce, in León, a video surveillance system is installed that is oriented towards the public road, which may be recording the public roadway.

Along with the complaints, two images of the camera locations are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained parties, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The complaint was forwarded to the two individuals indicated by the complainant as the alleged responsible parties for the video surveillance cameras.

The forwarding, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on March 23, 2023, by A.A.A., one of the complained parties, as evidenced by the acknowledgment of receipt in the file.

The forwarding, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified postal mail, was returned due to incorrect address, and the forwarding was reiterated by the same means, being notified on April 12, 2023, to B.B.B., another of the complained parties.

No response has been received to these forwarding documents.

THIRD: On May 14, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/5

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data. Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system complies with the provisions of the GDPR.

III

Principles of data minimization

Letter c) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

This means that in a specific processing, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed.

The application of the principle of data minimization in the context of video surveillance implies that images of the public road cannot be captured, since the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/5

The treatment of images in public places may only be carried out by the Security Forces and Bodies with prior governmental authorization.

In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public thoroughfare to ensure security purposes.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public thoroughfare unless it is essential for that purpose or it is impossible to avoid it due to their location.

In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, particularly not affecting the surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. The installed cameras may not capture images of third-party private space and/or public space without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed at the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted.

For all the above reasons, it has not been duly evidenced in the file that the parties claimed do not comply with the provisions of Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed," since neither the capture of public thoroughfare has been evidenced, and therefore the existence of the infringement, nor who is responsible for the processing.

The above must be connected with the validity in our Administrative Law sanctioning the principle of the presumption of innocence recognized in Article 24.2 of the Spanish Constitution, in such a way that the exercise of the State's sanctioning power, in its various manifestations, is conditioned by the play of evidence and a contradictory procedure in which one's own positions can be defended.

The principle of the presumption of innocence prevents attributing an administrative infringement when no evidence has been obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them.

The Constitutional Court (SSTC 131/2003 and 242/2005, among others) has ruled in this regard by indicating that one of the inherent requirements of the right to the presumption of innocence is that the sanction be based on acts or incriminating evidence of the conduct attributed and that the burden of proof regarding the commission of the administrative offense and the participation of the accused lies with the acting public Administration.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/5

For its part, Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector establishes as one of the principles of the sanctioning power the principle of "Responsibility" and determines in this regard that:

"Only individuals and legal entities, as well as, when a Law recognizes their capacity to act, the groups of affected individuals, unions and entities without legal personality, and independent or autonomous assets, that are found responsible for the same by way of intent or fault, may be sanctioned for acts constituting administrative infringement."

Likewise, it should be taken into account what is established in Article 53.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, which states that:

"In addition to the rights provided for in the previous section, in the case of administrative procedures of a sanctioning nature, the presumed responsible parties shall have the following rights: (...)

b) To the presumption of non-existence of administrative responsibility until proven otherwise."

IV

Conclusion

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, since the public capture is not evidenced by the submitted photos, and it has been impossible to identify the presumed responsible party.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to substantiate the infringement according to what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGGD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

